

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 899

BY HEALTH AND WELFARE COMMITTEE

AN ACT

RELATING TO THE MEDICAL ADVANCED HEALING ACT; AMENDING TITLE 39, IDAHO CODE, BY THE ADDITION OF A NEW CHAPTER 69, TITLE 39, IDAHO CODE, TO PROVIDE A SHORT TITLE, TO PROVIDE LEGISLATIVE FINDINGS, TO ESTABLISH A PILOT PROGRAM, TO DEFINE TERMS, TO PROVIDE FOR AUTHORIZED ACTIVITIES, SAFETY REQUIREMENTS, AND LIMITATIONS, TO ESTABLISH LICENSING AND RULEMAKING AUTHORITY, TO ESTABLISH A FUND, TO PROVIDE FOR DATA COLLECTION AND REPORTING, AND TO PROVIDE FOR LEGISLATIVE APPROVAL OF RULES; PROVIDING SEVERABILITY; AND DECLARING AN EMERGENCY.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Title 39, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW CHAPTER, to be known and designated as Chapter 69, Title 39, Idaho Code, and to read as follows:

CHAPTER 69

MEDICAL ADVANCED HEALING ACT

39-6901. SHORT TITLE. This chapter shall be known and may be cited as the "Medical Advanced Healing Act" or "MAHA."

39-6902. LEGISLATIVE FINDINGS. The legislature finds and determines that:

(1) Many Idahoans, especially veterans and first responders who have experienced job-related trauma, suffer from post-traumatic stress disorder, depression, substance abuse disorder, traumatic brain injury, and other serious conditions that may not be adequately relieved with existing treatments;

(2) Individuals who suffer from addiction to drugs or alcohol and for whom existing treatments are not providing relief may benefit from alternative treatments;

(3) Emerging research indicates that certain neuroplastogens may offer meaningful benefits to individuals who suffer from certain health conditions when delivered in a controlled clinical setting with appropriate screening, supervision, and follow-up care;

(4) The national defense authorization act of 2024 allows states to partner with the secretary of war to study medicines such as psilocybin, MDMA, and ibogaine for treatment of serious behavioral health conditions; and

(5) The department of war recently provided ten million dollars (\$10,000,000) to study these emerging modalities.

1 39-6903. ESTABLISHMENT OF PILOT PROGRAM. (1) The purpose of this chap-
2 ter is to establish a carefully regulated pilot program housed in the depart-
3 ment of health and welfare.

4 (2) The pilot program shall be designed to provide initial access lim-
5 ited to veterans, first responders, and those suffering from addiction.

6 (3) The pilot program shall be designed to:

7 (a) Protect public health and safety through strong screening, profes-
8 sional standards, and diversion control;

9 (b) Improve access to emerging therapeutic options for Idaho veterans;
10 and

11 (c) Generate Idaho-specific safety outcomes data to inform future leg-
12 islative action.

13 (4) The pilot program shall be administered in a revenue-neutral man-
14 ner. The program shall be funded primarily through program fees and volun-
15 tary grants or donations and not by ongoing general fund appropriations un-
16 less authorized by future legislation.

17 (5) Participation in the pilot program shall be voluntary. Nothing in
18 this chapter shall be construed to require any person to participate in the
19 pilot program.

20 (6) The legislature shall retain full authority to modify, expand,
21 limit, or discontinue the pilot program established pursuant to this chap-
22 ter.

23 39-6904. DEFINITIONS. As used in this chapter:

24 (1) "Approved medicine" means a neuroplastogen or entheogenic sub-
25 stance authorized for use in the program. Approved medicines shall be
26 limited to:

27 (a) Psilocybin;

28 (b) 3,4-methylenedioxymethamphetamine (MDMA);

29 (c) Ibogaine; and

30 (d) Such additional medicines, if any, as may be subsequently autho-
31 rized by the legislature.

32 (2) "Department" means the Idaho department of health and welfare.

33 (3) "Eligible participant" means a person who:

34 (a) Is twenty-one (21) years of age or older;

35 (b) Is a resident of Idaho;

36 (c) Has a qualifying condition; and

37 (d) Has been screened and approved for participation in the program
38 pursuant to department rule.

39 (4) "Program" means the medical advanced healing act (MAHA) pilot pro-
40 gram established pursuant to this chapter.

41 (5) "Qualifying condition" means post-traumatic stress disorder, ma-
42 jor depressive disorder, substance use disorder, or another serious behav-
43 ioral health condition identified by department rule based on clinical evi-
44 dence and the purposes of this chapter.

45 39-6905. AUTHORIZED ACTIVITIES -- SAFETY REQUIREMENTS -- LIMITA-
46 TIONS. (1) To the extent consistent with the provisions of this chapter and
47 federal law, it shall be lawful:

48 (a) To obtain, possess, store, and administer approved medicines; and

(b) For an eligible participant to possess and consume approved medicine during a supervised administration session pursuant to department rule.

(2) The department shall adopt rules to establish minimum safety standards, including rules regarding:

(a) Screening for medical and psychiatric contraindications;

(b) Informed consent, including disclosure of material risks and alternatives;

(c) Requirements for preparation and post-administration support services;

(d) Minimum supervision requirements during administration sessions, including emergency procedures and referral pathways for higher-level care; and

(e) Ethical standards and professional conduct requirements to prevent exploitation and abuse.

(3) Approved medicines shall not be dispensed to a participant unless such participant is supervised. Unsupervised use shall be prohibited.

(4) The department shall require secure storage, inventory controls, and recordkeeping sufficient to prevent diversion and to ensure accountability.

39-6906. LICENSING AND RULEMAKING. (1) The department shall promulgate rules to implement and administer this chapter, including rules governing:

(a) Certification and training requirements;

(b) Licensing standards, inspections, and security requirements;

(c) Sourcing, testing, packaging, labeling, tracking, and disposal of approved medicines;

(d) Participant eligibility, screening standards, and clinical protocols; and

(e) Enforcement, including grounds for denial, suspension, and revocation of licensure or certification.

(2) In developing rules, the department shall consult with stakeholders. The department may coordinate with federal agencies.

(3) The department may implement the program in phases and shall prioritize readiness and safety and adjust timelines by rule if necessary to safely operate the pilot program.

39-6907. MAHA FUND. (1) There is hereby created in the state treasury the medical advanced healing act (MAHA) fund, which shall be administered by the department.

(2) The department may establish reasonable fees by rule to support administration and oversight of the program, including licensing and renewal fees and a modest per-session program fee. All funds collected shall be deposited into the MAHA fund for use by the program.

(3) The department may accept payments, grants, gifts, or donations to support the program, including to subsidize participation by veterans, provided that acceptance of such payments, grants, gifts, or donations does not create a conflict of interest or compromise program integrity. All funds collected shall be deposited into the MAHA fund for use by the MAHA program.

1 (4) Moneys in the fund shall be used only for purposes of implementing,
2 administering, and enforcing this chapter, subject to appropriation by the
3 legislature.

4 (5) The state treasurer shall invest the idle moneys of the MAHA fund,
5 and the interest earned on such investments shall be retained by the MAHA
6 fund.

7 39-6908. DATA COLLECTION AND REPORTING. (1) The department shall col-
8 lect de-identified program data sufficient to evaluate safety, outcomes,
9 and program integrity.

10 (2) Beginning one (1) year after the program commences services, and
11 annually thereafter, the department shall report to the governor and germane
12 committees of the legislature regarding:

13 (a) The number of individuals served and general characteristics of
14 participants;

15 (b) The number and types of sessions conducted;

16 (c) Aggregate safety outcomes;

17 (d) Observed changes in clinical outcomes as available and appropri-
18 ate; and

19 (e) Program finances and fees.

20 (3) The department's report may include recommendations for improving
21 or expanding the program, including any proposed statutory changes.

22 (4) The department's report to the legislature shall be provided pur-
23 suant to the provisions of sections 67-466 and 67-705, Idaho Code.

24 39-6909. LEGISLATIVE APPROVAL OF RULES. All rules established pur-
25 suant to this chapter shall be subject to legislative approval.

26 SECTION 2. SEVERABILITY. The provisions of this act are hereby declared
27 to be severable and if any provision of this act or the application of such
28 provision to any person or circumstance is declared invalid for any reason,
29 such declaration shall not affect the validity of the remaining portions of
30 this act.

31 SECTION 3. An emergency existing therefor, which emergency is hereby
32 declared to exist, this act shall be in full force and effect on and after its
33 passage and approval.